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August 22, 2013

Via E-Mail and First Class Mail: judges@fmc.gov

Hon. Clay G. Guthridge
Chef Administrative Law Judge
Office of Administrative Law Judges (ALJ).
Federal Maritime Commission
800 N. Capitol Street, NW
Washington, DC 20573-0001

Re: Seagull Maritime Agencies Private Ltd. v. Gren Automotive, Inc., et al.
FMC Docket No. 13-03
Submission of Settlement Agreement

Dear Hon. Judge Guthridge:

Pursuant to the Commission's Order to Supplement the Record dated August 16, 2013,
we enclose a copy of the parties Settlement Agreement and Release.

Respectfully submitted,



Henry P. Gonzalez, LL.M.

Cc: Weicheng Wang, Esq., Counsel for Respondents

SETTLEMENT AND RELEASE AGREEMENT

THIS SETTLEMENT AND RELEASE AGREEMENT ("Agreement"), dated effective as of June _____, 2013, is entered into by and between Seagull Maritime Agencies Private Limited ("SMA"), with a principle place of business located in New Jersey and Gren Automotive, Inc. ("GREN"), a New Jersey corporation and Mr. Shao Liu, individually ("Respondents").

RECITALS

WHEREAS, SMA commenced litigation against GREN, Centrus Automotive Distributors INC. ("CENTRUS") and Mr. Shao Liu by filing a complaint with the Federal Maritime Commission ("FMC"), Case No. 13-03 (the "Litigation"), alleging the respondents violated section §41102 (a) of the Shipping Act, as amended by the Ocean Shipping Reform Act of 1998.

WHEREAS, Respondents filed an answer to SMA's complaint and asserted numerous affirmative defenses.

WHEREAS, the Parties wish to settle and compromise all claims and matters by and between the Parties arising out FMC Case No. 13-03 and any other disputes by and between SMA and Respondents. No Party admits any liability to the other in making this settlement.

NOW THEREFORE, in consideration of the mutual promises and mutual covenants contained herein, the receipt and sufficiency of which are hereby acknowledged by the Parties, the Parties hereby agree as follows:

1. Respondents agree to settle SMA's claim for \$49,000.00, and agree to make the following payments by company check and pursuant to the following payment schedule:

\$25,000.00 by June 12, 2013 with cure date no later than June 15, 2013

\$24,000.00 by June 26, 2013 with cure date no later than June 28, 2013

2. Each Installment shall be payable to Seagull Maritime Agencies Pvt. Ltd. and shall be forwarded to the following:

Henry P. Gonzalez, LL.M.
Gonzalez del Valle Law
1250 Connecticut Ave., N.W., Suite 200
Washington, D.C. 20036

3. In the event any of the Respondents file for bankruptcy protection, Respondents agree on its behalf or any appointed trustee that it will not attempt to make or assert a claim for preferential payment and or fraudulent transfer or any other claim against SMA for the return of any payments past or under this Agreement. Patriot also agrees to waive any claim of duress.

4. Respondents agree to make each payment in a timely manner and on or before each date as stated in Section 1 above. In the event Respondents fail to make any payment as agreed to herein or if any check is dishonored for any reason, SMA shall have the right to enforce the terms of the settlement agreement in the Southern District of New York, which court shall have exclusive jurisdiction to enforce the terms of this agreement. Respondents Patriot agrees to waive all defenses (except the defense of proof of payment) affirmative or otherwise to any action by SMA to enforce the payment terms of this agreement.

5. In the event the FMC or the FMC ALJ requires that a motion to approved settlement be filed with the FMC, GREN and Mr. Shao Liu agree that respondent will be responsible for the cost and expenses for the drafting, preparation and filing of such motion. Any motion to approve settlement shall not alter the payment terms stated in this agreement.

MUTUAL RELEASE

Upon payment in full of the amounts set forth in Section 1 and compliance with the covenants and agreements to be performed herein, Each Party, on behalf of its respective officers, directors, shareholders, trustees, employees, partners, members, managers, agents, representatives, attorneys, guarantors, subsidiaries, predecessors, assigns, successors and heirs ("releasers") does hereby release, acquit and discharge, the other party's respective officers, directors, shareholders, trustees, employees, partners, members, managers, agents, suppliers, vendors, factories, and any other person or entity that is or could be deemed a merchant for purposes of the Shipping Act of 1984 with respect to the Shipment as well as representatives, attorneys, guarantors, subsidiaries, predecessors, assigns, successors, and heirs of any of the foregoing ("releasees") from any and all asserted and unasserted claims, liens, rights, causes of action, suits, charges, complaints, demands, damages, loss, expense, bills, accounts, debts, or liability or detriment of whatever kind or character, whether at law or in equity, that one party have or may have against the other party arising from actions occurring on or before the date of this Agreement arising in any manner whatsoever from the Litigation.

MISCELLANEOUS:

(a) The Parties to this Agreement represent and warrant to each other that the signatories to this Agreement each have the power, capacity and authority to execute and deliver this Agreement.

(b) This Agreement is subject to New York law and shall be construed in accordance with the laws thereof. If any provision hereof is in conflict with any statute or rule of law of the State of New York or is otherwise unenforceable, such provision shall be deemed null and void only to the extent of such conflict or unenforceability, and shall be deemed separate from and shall not invalidate any other provision of this Agreement. The prevailing Party shall be entitled to recover all of its reasonable attorney's fees and costs from the non-prevailing Party in the event of litigation arising under this Agreement.

(c) It is understood and agreed that this Agreement may be executed in several counterparts, each of which shall, for all purposes, be deemed an original and all of such counterparts, taken together, shall constitute one and the same agreement, even though the Parties may not have executed the same counterpart of this Agreement. Facsimile or other electronic signatures shall be deemed an original.

(d) This Agreement contains the entire agreement between the Parties and supersedes any and all previous agreements whether written or oral between the Parties. No amendment or modification of the Agreement will be binding upon the Parties hereto unless reduced to writing and signed by the Parties or by their respective authorized representatives.

(e) The Parties acknowledge that they have read this Agreement in its entirety, and that they fully understand all the terms and conditions contained herein. The Parties further acknowledge that they have signed this Agreement voluntarily and of their own free will after having an opportunity to consult with their respective attorneys.

(f) The Parties each acknowledge that there are no other agreements or representations between them, oral or written, express or implied, that are not embodied in this Agreement.

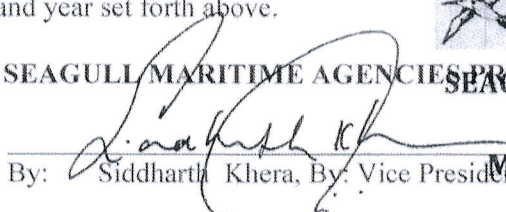
(g) In further consideration of the aforesaid covenants, the Parties, and each of them, warrant and represent that they have made no assignment of any Claim covered by this Agreement and that no person, firm, corporation, estate or any other entity has been subrogated to any such Claim and that they each have the sole and complete right and authority to settle, compromise, release and discharge all such Claims covered by this Agreement.

(h) The Parties agree to execute any and all additional documents necessary to effectuate the intent and purposes of this Agreement.

(i) This Agreement shall be binding upon and inure to the benefit of the Parties, their respective successors, assigns, grantees and legal representatives, and no other party shall be a beneficiary hereunder.

(j) This Agreement shall be deemed to have been prepared by all Parties and all Parties agree that the rule of *contra proferentem* will not apply against any particular Party.

IN WITNESS WHEREOF, the Parties have duly executed this Settlement and Release Agreement on the day and year set forth above.


By: Siddharth Khera, By: Vice President
SEAGULL MARITIME AGENCIES PRIVATE LIMITED
SEAGULL MARITIME AGENCIES PVT. LTD.
55 MADISON AVENUE
SUITE #400
MORRISTOWN, NEW JERSEY 07960
TEL:(973) 400-9999
FAX:(973) 975-0555
GREN AUTOMOTIVE, INC.,

By: Shao Liu, Vice President

Mr. Shao Liu

By: Shao Liu, Individually

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SEAGULL MARITIME AGENCIES PRIVATE LIMITED

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GREN AUTOMOTIVE, INC.,

By: Shao Liu, Vice President

Mr. Shao Liu

By: Shao Liu, Individually